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AS AMENDED

BILL NO. 2157

and

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[ renewable energy - Oklahoma Agrivoltaics Act -
Oklahoma Agrivoltaics Advisory Committee - membership
- compensation - duties - report - Oklahoma
Agrivoltaics Cash Revolving Fund - expenditures -
noncodification - codification -
emergency ]
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~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

A. The Oklahoma Legislature finds that:

2. Along with our traditional abundance of natural gas generation, the growth of various renewable energy projects could significantly expand the renewable energy footprint which could potentially impact agriculture production;

1 3. There are strategies for both the siting and construction of
2 these renewable energy projects that could minimize this impact on
3 farming and ranching and in some cases assist in improving overall
4 agriculture productivity; and

5 4. It is in the interest of the public that the State of
6 Oklahoma develop a legislative strategy designed to maintain
7 agricultural productivity along with renewable energy development in
8 a way that works in harmony with farming and ranching.

9 B. It is the intent of the Legislature that policies designed
10 to provide for new renewable energy generation construction also
11 supports the agriculture industry to be developed in the future.

12 SECTION 2. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 5060.46 of Title 74, unless
14 there is created a duplication in numbering, reads as follows:

15 This act shall be known and may be cited as the "Oklahoma
16 Agrivoltaics Act".

17 SECTION 3. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 5060.47 of Title 74, unless
19 there is created a duplication in numbering, reads as follows:

20 A. There is hereby created the Oklahoma Agrivoltaics Advisory
21 Committee. The Committee shall consist of the following seventeen
22 (17) members:

23 1. The Secretary of Agriculture or designee;

24 2. The Secretary of Energy and Environment or designee;

1 3. The Director of the Oklahoma Conservation Commission or
2 designee;

3 4. The Director of the Oklahoma Department of Wildlife
4 Conservation or designee;

5 5. One member representing the Division of Agriculture at
6 Oklahoma State University, to be appointed by the Governor;

7 6. Two members representing Tribal Governments, to be appointed
8 by the President Pro Tempore of the Oklahoma State Senate;

9 7. Two members representing the renewable energy industry, to
10 be appointed by the President Pro Tempore of the Oklahoma State
11 Senate;

12 8. Two members who are producers of field crops, to be
13 appointed by the President Pro Tempore of the Oklahoma State Senate;

14 9. Two members associated with the transmission and
15 distribution of electrical energy to be appointed by the Speaker of
16 the Oklahoma House of Representatives;

17 10. Two members who are producers of livestock, at least one of
18 whom is actively involved in range management, to be appointed by
19 the Speaker of the Oklahoma House of Representatives;

20 11. One member who is a designee of the Oklahoma Center for the
21 Advancement of Science and Technology; and

22 12. One member representing the forestry industry, to be
23 appointed by the Speaker of the Oklahoma House of Representatives.
24

1 B. Members of the Committee shall serve without compensation
2 but shall be reimbursed for their actual and necessary expenses as
3 provided in the State Travel Reimbursement Act. The Oklahoma Center
4 for the Advancement of Science and Technology (OCAST) shall provide
5 space for meetings of the Committee and shall provide other
6 assistance and staffing needs of the Committee.

7 C. The Oklahoma Agrivoltaics Advisory Committee shall:

8 1. Advise and assist OCAST in preparing any reports required by
9 this section and in conducting the assessment pursuant to Section 4
10 of this act;

11 2. Identify for Oklahoma agricultural and nonagricultural
12 landowners as well as renewable energy and transmission line
13 developers existing tools and government initiatives designed to
14 help in the siting and construction of renewable energy projects and
15 transmission systems in a manner supportive of farming, ranching,
16 and forestry, including agritourism and outdoor recreation leases;

17 3. Develop for consideration by the Oklahoma Legislature, the
18 Governor of the State of Oklahoma, the various Oklahoma state
19 agencies and the Oklahoma Congressional Delegation policy options
20 designed to encourage maintaining agricultural productivity with
21 renewable energy projects and transmission systems including
22 farming, ranching, and forestry, including agritourism and outdoor
23 recreation leases;

1 4. Encourage the production of educational and advisory
2 materials regarding the development of agrivoltaics in Oklahoma and
3 to inform both landowners and the renewable energy industry on
4 strategies designed to encourage the development of renewable energy
5 generation in a manner supporting farming, ranching, and forestry,
6 including agritourism and outdoor recreation leases; and

7 5. Identify and recommend areas of research needed on the
8 development of agrivoltaics and the siting and construction of
9 renewable energy projects and transmission systems in a manner
10 designed to minimize their impact on production agriculture and
11 forestry, including agritourism and outdoor recreation leases.

12 SECTION 4. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 5060.48 of Title 74, unless
14 there is created a duplication in numbering, reads as follows:

15 On or before January 1, 2026, the Oklahoma Center for the
16 Advancement of Science and Technology, in consultation with the
17 Oklahoma Agrivoltaics Advisory Committee, shall prepare a report and
18 submit to the Legislature. The report shall include, but shall not
19 be limited to:

20 1. A list and explanation of existing tools and government
21 initiatives designed to help in the siting and construction of
22 renewable energy projects and transmission systems in a manner
23 supportive of farming, ranching, and forestry, including agritourism
24 and outdoor recreation leases;

1 2. A list of policy options designed to encourage the
2 development of renewable energy projects and transmission systems in
3 a manner supportive of farming, ranching, and forestry, including
4 agritourism and outdoor recreation leases, for consideration by the
5 Oklahoma Legislature, the Governor of the State of Oklahoma, the
6 various Oklahoma state agencies and the Oklahoma Congressional
7 Delegation; and

8 3. Recommended areas of research needed on the development of
9 agrivoltaics and the siting and construction of renewable energy
10 projects and transmission systems in a manner designed to minimize
11 their impact on production agriculture and forestry, including
12 agritourism and outdoor recreation leases.

13 SECTION 5. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 5060.49 of Title 74, unless
15 there is created a duplication in numbering, reads as follows:

16 There is hereby created in the State Treasury a revolving fund
17 for the Oklahoma Center for the Advancement of Science and
18 Technology (OCAST), to be designated the "Oklahoma Agrivoltaics Cash
19 Revolving Fund". The fund shall be a continuing fund, not subject
20 to fiscal year limitations, and shall consist of all monies
21 designated for deposit to said fund, including any money received as
22 gifts, grants, or other contributions from public or private
23 sources. All monies accruing to the credit of said fund are hereby
24 appropriated and may be budgeted and shall be expended by OCAST for

1 the purposes of carrying out the provisions of the Oklahoma
2 Agrivoltaics Act. Expenditures from said fund shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 prescribed by law with the Director of the Office of Management and
5 Enterprise Services for approval and payment. No money shall be
6 transferred or expended by OCAST for any other purpose than that
7 authorized by this section.

8 SECTION 6. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
13 April 24, 2025 - DO PASS AS AMENDED
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